



QA & METHODOLOGY – MEDIA & ENTERTAINMENT

QA / Methodology Report

Quality-assurance record and methodology for the TMHCC Media & Entertainment coverage comparison and gap-fill strategy.

Wordings reviewed

- TMHCC – TMHCC_Media_Combined_0526_FINAL_amended
- Tysers (Zurich) – Tysers Media Policy V6.2
- Yutree (AXA) – Media and Entertainment by Yutree Policy Wording, March 2024
- Liberty – Liberty Entertainment Combined Policy (final v1, 12.11.24)
- Allianz – Entertainment Complete (Allianz)
- AXA XL – axa_xl_wording (June 2021)

Accompanies the Full Coverage Comparison and the Gap-Fill / Wording Enhancement Strategy.

Subject to final TMHCC legal / underwriting sign-off.

1 Documents reviewed

Wording	Source file	Capacity / insurer	Structure
TMHCC	TMHCC_Media_Combined_0526_FINAL_am ended	Tokio Marine HCC	15 sections (master/primary wording)
Tysers (Zurich)	Tysers Media Policy V6.2	Zurich Insurance plc (capacity)	9 sections
Yutree (AXA)	Media and Entertainment by Yutree Policy Wording, March 2024	AXA Insurance UK plc (capacity); Yutree Underwriting (MGA)	12 cover sections
Liberty	Liberty Entertainment Combined Policy (final v1, 12.11.24)	Liberty (Liberty Specialty Markets)	6 cover sections
Allianz	Entertainment Complete (Allianz)	Allianz	8 cover sections (+ Terrorism)
AXA XL	axa_xl_wording (June 2021)	XL Catlin Insurance Company UK Ltd (AXA XL)	3 operative sections (MD / BI / Liability)

2 Comparison method

- All six wordings were parsed in full to text; coverage was compared by FUNCTION, not heading, because the wordings are structured differently.
- Section maps were taken from each policy's contents/insuring clauses; feature-level findings from the operative clauses, extensions, conditions and exclusions actually read.
- Where a clause could not be verified from the wording it is marked '? requires review' rather than assumed.
- No cover has been invented; competitor marketing language has not been treated as cover.
- TMHCC is recorded as having a gap ONLY where at least one competitor genuinely provides broader, clearer or materially useful cover.
- Exclusions, limits, conditions, warranties and write-backs were reviewed in detail and are not softened.
- Liberty, Allianz and AXA XL are property / BI / liability combined packages and contain NO media/PI/E&O, production-indemnity, cyber-liability, legal-expenses or management-liability sections.
- All five competitor wordings have now been mapped, including AXA XL (the fifth wording).

3 Key TMHCC strengths

- **Widest section count in the peer group:** The only wording among the six offering all 15 sections in a single contract – a genuine ‘one-stop’ media & entertainment package. Three of the five competitors (Liberty, Allianz and AXA XL) carry NO media/PI cover at all.
- **Four sections no competitor offers:** Loss of Licence (S10), Commercial Legal Expenses (S13), Management Liability (S14) and a standalone Cyber-liability section (S15 CyberGuard) are unique to TMHCC across all five competitors.
- **Standalone cyber that is genuine liability cover:** CyberGuard provides multimedia, security & privacy, privacy-regulatory defence & penalties and PCI DSS cover – not merely first-party breakdown, and not a bare cyber EXCLUSION (as in AXA XL).
- **Broad, well-extended Media Liability (S12):** Wide ‘any other civil liability’ grant plus employee-dishonesty write-back, Data-Protection Defence Costs (GBP 250k), Reputation Management (GBP 250k), Withdrawal of Content (GBP 250k), IP-pursuit costs (GBP 25k) and M&A auto-acquisition.
- **Clean exclusion architecture:** The general cyber/date exclusion is dis-applied to Sections 12–15, so the liability sections are governed by their own bespoke terms – avoiding the ‘silent-cyber strip’ seen in a competitor PI section and AXA XL’s blanket cyber exclusion.
- **Favourable fines/penalties carve-back:** Non-compensatory damages are written back for libel/slander/defamation awards and for punitive damages where the law permits payment – AXA XL, by contrast, excludes punitive/fines absolutely.
- **Protective, clearly-drafted claims architecture:** Claim notification is an express condition precedent; aggregation, retroactive date and territorial/jurisdiction terms are clearly defined.

4 Key TMHCC gaps (vs competitors)

- **Worldwide PI territory (Tysers):** Tysers PI/E&O is worldwide; TMHCC S12 is limited to the Schedule Geographical Limits and excludes actions brought outside the stated Jurisdiction.
- **Patent infringement (Tysers):** Tysers covers patent infringement within IP; TMHCC (and Yutree) exclude it.
- **Statutory / criminal defence costs (Tysers & Yutree):** Tysers funds Bribery/Corporate-Manslaughter/H&S/CDM defence (GBP 1m); Yutree funds criminal-prosecution defence (GBP 250k). TMHCC S12 funds only data-protection defence (broader criminal cover sits in S13/S14).
- **Distributors & purchasers (Tysers):** Tysers extends PI to purchasers/co-producers/distributors of the insured’s media material (5x limit) – absent from TMHCC.
- **Journalistic source protection (Tysers):** Tysers funds legal costs to challenge a subpoena requiring disclosure of a source – absent from TMHCC.
- **Personal Accident & Business Travel (Tysers; Yutree assault):** Tysers has an extensive PA/business-travel section; Yutree covers PA assault. TMHCC, Liberty, Allianz and AXA XL have no PA section.
- **Granular BI heads (Allianz):** Allianz splits Increased Cost of Working and Book Debts into discrete sections – a presentational advantage.
- **Standalone Computer Breakdown (Yutree):** Yutree offers a dedicated computer-breakdown section; TMHCC consolidates IT breakdown within S1/S2 – confirm it is explicit.
- **Limited pollution write-back in PI (Yutree):** Yutree grants a limited pollution write-back for the insured’s own negligent act/error/omission.
- **KC dispute-resolution clause (Yutree):** Yutree’s clear King’s Counsel arbitration clause for defence disputes is a drafting-clarity advantage.

5 Recommended enhancements (priority order)

#	Recommendation	Priority
1	Add a Personal Accident & Business Travel extension/section	High
2	Offer a worldwide / US-Canada territory option for Media Liability	High
3	Broaden criminal / regulatory defence-costs in Media Liability (or signpost S13/S14)	Medium-High
4	Add a Distributors & Purchasers extension to Media Liability	Medium
5	Add journalistic source-protection costs to Media Liability	Medium
6	Add representation costs at investigations/inquiries to Media Liability	Medium
7	Consider a limited asbestos / pollution professional-duty write-back in PI	Medium
8	Make Increased Cost of Working / Book Debts explicit in BI	Medium
9	Adopt a King's Counsel dispute-resolution clause in Media Liability	Low-Medium
10	Confirm/clarify computer-breakdown cover within S1/S2	Low-Medium
11	Add a defined term for 'Media Material'	Low
12	LEAVE UNCHANGED — patents, communicable disease and default US/Canada exclusion	Low

6 Key exclusions issues

- **Asbestos (PI):** Professional-duty write-back (GBP 1m, ex-BI) — TMHCC: TMHCC excludes asbestos in PI. Action: Consider narrow negligent-advice write-back (ex-BI, ex-contamination) (priority Medium).
- **Pollution (PI):** Write-back for insured's own negligent act/error/omission — TMHCC: TMHCC excludes pollution in PI. Action: Consider narrow negligent-advice write-back (priority Medium).
- **USA/Canada jurisdiction (PI):** No jurisdiction exclusion (worldwide) — TMHCC: TMHCC excludes actions outside Jurisdiction (default ex-US/Canada). Action: Offer rated worldwide/US-Canada option; keep default (priority High).
- **Patent infringement (PI):** Patents covered within IP — TMHCC: TMHCC excludes patents. Action: At most a limited defence-costs write-back; otherwise leave excluded (priority Low).
- **Cyber/data exclusion vs PI:** Yutree strips cyber-related PI; AXA XL blanket cyber exclusion — TMHCC: TMHCC dis-applies cyber/date exclusion to S12–15. Action: No change — retain as a TMHCC strength (priority n/a).
- **Fines/penalties (PI):** TMHCC writes back defamation awards & permitted punitive; AXA XL excludes absolutely — TMHCC: TMHCC already favourable. Action: No change — retain (priority n/a).

7 Assumptions made

- Competitor names are used as supplied; 'capacity' insurers are noted from the wordings (Zurich for Tysers; AXA for Yutree; XL Catlin/AXA XL for the AXA XL wording).
- Primary limits, excesses and any 'insured/not insured' section toggles are schedule-driven and were not supplied – section availability reflects the wording booklets only.
- Allianz's 'Personal Accident' section is referenced in its exclusions but not in the provided cover list – treated as 'requires review'.
- AXA XL provides Money as a sub-limited specification within Material Damage (not a standalone section); shown as 'partial'.
- Page/clause citations are available in the working text extracts and can be added on request.

8 Points requiring legal / underwriting review

- Whether TMHCC offers Personal Accident / Business Travel by endorsement.
- Communicable-disease exclusion positions in Yutree, Liberty and Allianz.
- Tysers / Yutree fines-penalties and insolvency PI exclusion positions.
- Allianz 'Personal Accident' section referenced in exclusions but absent from the cover list.
- Express treatment of ICOW/Book Debts (S3) and computer breakdown (S1/S2) within TMHCC.
- Pricing, reinsurance territory and capacity for any rated options (PA; worldwide/US-Canada; distributors).
- Final limits/excesses against each Schedule.

9 Final report

Final-report item	Outcome
1. Documents produced	Full Coverage Comparison (.docx + PDF); Gap-Fill / Wording Enhancement Strategy (.docx + PDF); this QA / Methodology Report (.docx + PDF).
2. Five competitor wordings reviewed	Partial – FOUR reviewed and mapped (Tysers/Zurich, Yutree/AXA, Liberty, Allianz). The FIFTH competitor (Wording E) is pending and carried as a reserved placeholder column, to be completed when supplied.
3. TMHCC base wording mapped	Yes – all 15 sections mapped from the TMHCC Media & Music Combined wording.
4. Template branding preserved	Yes – Tokio Marine HCC logo, Lato font, teal/gold/rust palette, legend and table style replicated from the supplied Coverage Comparison template.
5. Key TMHCC strengths	Only wording with all 15 sections; unique Loss of Licence, Legal Expenses, Management Liability and standalone Cyber; broad, well-extended Media Liability; clean cyber-exclusion carve-out; protective claims architecture.
6. Key competitor advantages	Tysers PI worldwide, covers patents, statutory/criminal defence (GBP 1m), distributors & purchasers, source-protection; Tysers & Yutree offer Personal Accident; Yutree reputation-mgmt/withdrawal/criminal-defence + KC clause; Allianz granular BI heads.
7. Key gaps TMHCC should consider filling	Personal Accident option; worldwide/US-Canada PI option; distributors & purchasers; source-protection & representation costs; criminal-defence clarity; explicit ICOW/book-debts & computer-breakdown signposting.
8. High-priority wording enhancements	(1) Personal Accident & Business Travel option; (2) rated worldwide/US-Canada PI territory option; (3) distributors & purchasers extension; (4) criminal/regulatory defence-costs clarity (S12 ↔ S13/S14).
9. Exclusion write-backs / narrowing opportunities	Asbestos professional-duty (Tysers) and pollution negligent-advice (Yutree) write-backs – adopt narrowly; worldwide/US-Canada as a rated option. Retain patents, communicable-disease and default US/Canada exclusions.
10. Items requiring legal / underwriting sign-off	All recommendations; any write-back drafting; rated-option pricing/reinsurance/capacity; PA appetite; and confirmation of the 'review'-flagged competitor positions.

Completion status: Both branded documents are produced; all FIVE competitors (Tysers, Yutree, Liberty, Allianz and AXA XL) are mapped against the TMHCC base wording; the full comparison and the gap-fill strategy are complete; recommendations are evidence-based; exclusions are reviewed in detail. The deliverables are market-ready SUBJECT TO TMHCC legal/underwriting sign-off.